



Notification Waiver Determination

Australian Venue Co – assets of Chequers Hotel, Bullsbrook WA

Acquisition	AVC Operations Pty Ltd (AVC) applied for a notification waiver in respect of its proposed acquisition of substantially all of the assets of the licensed hotel business trading as the Chequers Hotel (including the exclusive right to carry on the business in succession of the current owner and vendor) from Saracen Property Holdings No2 Pty Ltd, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	3 August 2026

Parties to the Acquisition	The acquirer, AVC, is a subsidiary of Australian Venue Co. Holdings Limited which operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as some bars, clubs and licensed restaurants. AVC's venues are individually branded and are mostly located in inner-city and metro areas, offering a range of products and services including food, alcoholic and non-alcoholic beverages, function rooms, live entertainment and gaming facilities. The target, Chequers Hotel, is a licensed hotel venue located at 2543 Great Northern Highway, Bullsbrook WA 6084. The venue is a typical Australian pub with a public bar, bistro and beer garden.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - the parties combined share, based on number of premises, in the supply of dining, and on-premises liquor in the local area surrounding the Chequers Hotel is low - there are alternative venues which supply dining, and on-premises liquor in the local area surrounding the Chequers Hotel and in the broader Bullsbrook area. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**